

AXE CREDIT PORTAL (ACP)

MASTER SOFTWARE LICENSE, IMPLEMENTATION, INTEGRATION, SUPPORT AND SERVICES AGREEMENT

Contract Reference: AXF-ACP-MASTER-2024-0088

Effective Date: October 1, 2024 | Classification: STRICTLY CONFIDENTIAL

Version: 3.2 — Final Executed Version

CONTRACTING PARTIES	
Software & Services Provider	Axe Finance SAS 4 Rue du Faubourg Saint-Honoré, 75008 Paris, France SIRET: 456 789 123 00021 VAT: FR12456789123 ISO 27001 Certified Gartner Recognized 2024 Represented by: Mr. Mehdi Tazi, CEO
Client	MegaBank Group SA 1 Avenue de la République, 75011 Paris, France SIRET: 111 222 333 00044 VAT: FR99111222333 Regulated by Autorité de Contrôle Prudentiel Represented by: Ms. Amina Bencherif, CFO (DAF)
Contract Duration	Master Agreement: 10 years (Oct 2024 – Sep 2034) Implementation: 30 months (Oct 2024 – Mar 2027) Support & Maintenance: 7 years initial term
Total Contract Value	EUR 4,750,000 excluding VAT
Governing Law	French Law — ICC Arbitration Paris

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ARTICLE 1 — DEFINITIONS AND INTERPRETATION

For the purposes of this Agreement, the following terms shall have the meanings ascribed to them below:

'ACP' means Axe Credit Portal, Axe Finance's flagship end-to-end digital lending platform covering the full credit lifecycle.

'Agreement' means This Master Software License, Implementation, Integration, Support and Services Agreement including all Annexes.

'Affiliate' means Any entity that directly or indirectly controls, is controlled by, or is under common control with a party.

'Business Day' means Any day other than Saturday, Sunday, or a public holiday in France or the Client's country of operation.

'Change Order' means A formal written document approved by both parties modifying the scope, timeline, or budget of the Agreement.

'Confidential Information' means Any information disclosed by one party to the other that is marked confidential or that a reasonable person would consider confidential.

'Deliverable' means Any software, documentation, report, or other work product to be provided by Axe Finance under this Agreement.

'Documentation' means All user manuals, technical guides, API documentation, release notes, and training materials provided with ACP.

'Effective Date' means October 1, 2024, being the date from which this Agreement takes legal effect.

'Force Majeure Event' means Any event beyond the reasonable control of a party including natural disasters, war, pandemics, and government actions.

'Go-Live' means The date on which a module or phase is deployed to production and available for end-user access.

'Implementation Services' means All consulting, configuration, integration, testing, training, and project management services provided by Axe Finance.

'Intellectual Property Rights' means All patents, copyrights, trademarks, trade secrets, and other proprietary rights.

'KPI' means Key Performance Indicator as defined in Annex H of this Agreement.

'License' means The rights granted to the Client to use the ACP software as described in Article 7.

'Maintenance Release' means A software release containing bug fixes and minor improvements that does not constitute a Major Version.

'Major Version' means A software release introducing significant new functionality or architectural changes.

'Personal Data' means Any information relating to an identified or identifiable natural person as defined under applicable data protection law.

'Phase Gate' means A formal review point at the end of each project phase requiring sign-off before proceeding.

'Production Environment' means The live computing environment in which ACP operates for actual business use.

'SLA' means Service Level Agreement as defined in Article 19 and detailed in Annex C.

'Steering Committee' means The joint governance body comprising senior representatives of both parties as described in Article 9.

'UAT' means User Acceptance Testing, the formal testing phase conducted by the Client to validate Deliverables.

'Workaround' means A temporary solution to a defect that allows continued business operation pending a permanent fix.

ARTICLE 2 — PARTIES AND AUTHORIZED REPRESENTATIVES

2.1 Software and Services Provider

Axe Finance SAS, a société par actions simplifiée incorporated under French law, with its registered office at 4 Rue du Faubourg Saint-Honoré, 75008 Paris, France, registered with the Paris Trade and Companies Register under number 456 789 123, VAT number FR12456789123, ISO 27001 certified since 2018, recognized by Gartner in the 2024 Market Guide for Commercial Loan Origination Solutions, and positioned as Leader in the 2025 SPARK Matrix for both Retail and Commercial Loan Origination Systems by QKS Group. Axe Finance operates in over 35 countries, serves more than 60 tier-1 financial institutions globally, including Société Générale, OTP Bank, Bangkok Bank, Qatar National Bank, and Arab National Bank. Axe Finance reinvests 40% of its revenue in Research and Development annually.

Authorized Representative: Mr. Mehdi Tazi, Chief Executive Officer.

Delivery Lead: Ms. Nadia Khelil, Chief Delivery Officer.

Legal Contact: Mr. Karim Benzara, General Counsel.

Technical Lead: Mr. Youssef Amrani, Chief Technology Officer.

2.2 Client

MegaBank Group SA, a société anonyme incorporated under French law, with its registered office at 1 Avenue de la République, 75011 Paris, France, registered under SIRET 111 222 333 00044, VAT number FR99111222333, regulated by the Autorité de Contrôle Prudentiel et de Résolution (ACPR), a systemic financial institution with total assets exceeding EUR 120 billion, operating across 15 countries with 8,500 employees and 3.2 million customers.

Authorized Representative (DAF): Ms. Amina Bencherif, Chief Financial Officer.

Program Sponsor: Mr. Thomas Leclerc, Chief Information Officer.

Business Owner: Ms. Sophie Renard, Head of Retail Banking.

IT Lead: Mr. Antoine Dubois, Head of Banking Systems.

2.3 Joint Steering Committee Composition

Both parties shall establish a Joint Steering Committee within 15 days of the Effective Date, comprising 3 senior representatives from each party with authority to approve Change Orders up to EUR 200,000 and schedule changes up to 30 days. Changes exceeding these thresholds require CEO/CFO approval. The Steering Committee shall meet monthly and produce formal minutes within 5 Business Days of each meeting.

ARTICLE 3 — PREAMBLE AND STRATEGIC CONTEXT

MegaBank Group has identified digital transformation of its credit operations as a strategic priority for the period 2024–2030. The bank's current credit operations rely on legacy systems that create bottlenecks in loan origination, manual underwriting processes that extend turnaround times to 15–20 business days for corporate loans, and fragmented data architectures that impede portfolio risk monitoring and regulatory reporting.

Following a rigorous 18-month RFP process involving 12 LendTech vendors, independent evaluation by a Big 4 advisory firm, and extensive product demonstrations, MegaBank Group selected Axe Finance's ACP platform as its strategic digital lending infrastructure. The selection was based on ACP's demonstrated ability to reduce loan origination turnaround times by up to 70%, its AI-powered scoring capabilities, its proven implementation track record at comparable institutions, and its alignment with the bank's 10-year technology roadmap.

This Agreement establishes the comprehensive legal, technical, financial, and operational framework governing the implementation, licensing, operation, and evolution of ACP within MegaBank Group for a period of ten (10) years, with a vision to make ACP the core digital infrastructure supporting all credit activities across all segments and all geographies of the bank.

ARTICLE 4 — SCOPE OF THE ACP PLATFORM

The Axe Credit Portal (ACP) is a unified, modular, cloud-native digital lending platform designed to automate and optimize the complete credit lifecycle for financial institutions. ACP covers all lending segments including Corporate Loans, Commercial Loans, SME/MSME Lending, Retail Consumer Loans, Mortgage Loans, Islamic Banking, FI Loans, Sovereign Loans, Development Banking, Embedded Finance, and Credit Cards.

The platform is built on a microservices architecture, enabling independent scaling and deployment of individual modules. ACP integrates natively with major core banking systems, credit bureaus, regulatory reporting frameworks, and third-party data providers through a comprehensive REST API layer and pre-built connectors.

Key Architectural Principles: API-first design enabling omnichannel access; event-driven architecture for real-time processing; cloud-agnostic deployment (on-premise, Azure, AWS, GCP); low-code/no-code configuration through ACP Studio; built-in compliance engine supporting Basel III/IV, IFRS 9, DORA, and local regulations; AI/ML capabilities embedded throughout the credit lifecycle.

ARTICLE 5 — MODULES AND FUNCTIONAL COVERAGE

5.1 KYC & Onboarding

Digital customer onboarding supporting individual, corporate, and institutional borrowers. Features include digital ID verification, document OCR and validation, AML/KYC screening against international watchlists (OFAC, EU, UN), PEP screening, beneficial ownership mapping, automated risk scoring for onboarding, and seamless handoff to origination. Supports multi-channel onboarding: branch, online portal, mobile application, and partner channels.

5.2 Origination

End-to-end loan origination covering all loan types from initial application through credit decision. Configurable application forms for each segment and product type. Automated document checklist generation and tracking. Financial spreading and spreading templates. Multi-currency support. Relationship hierarchy management for group borrowers. Real-time application status tracking for relationship managers and borrowers.

5.3 AI-Powered Scoring & Decisioning

Hybrid scoring engine combining traditional statistical models (logistic regression, scorecards) with machine learning models (gradient boosting, neural networks, random forests). Supports behavioral, application, bureau, and alternative data scoring. Explainable AI (XAI) module providing rationale for every credit decision in regulatory-compliant format. Automated decision for standardized products; recommendation engine for complex credits. Model monitoring, drift detection, and automated retraining workflows.

5.4 Underwriting & Approval

Configurable underwriting workflows with role-based delegation of authority matrices. Automated financial analysis and ratio calculation (leverage, coverage, liquidity, profitability). Covenant monitoring and early breach detection. Multi-approver workflows with parallel and sequential routing. Exception management and override tracking with full audit trail. Integration with risk rating systems and internal models.

5.5 Limit Management

Comprehensive credit limit management across all exposure types. Real-time exposure tracking across counterparty, sector, geography, and product dimensions. Automatic limit breach alerts and blocking controls. Group exposure consolidation. Regulatory limit monitoring (large exposures, concentration limits). Limit review and annual review workflow automation.

5.6 Collateral Management

Full collateral lifecycle from registration to release. Supports all collateral types: real estate, financial assets, guarantees, insurance policies, movable assets, trade receivables, and intellectual property. Automated valuation scheduling and tracking. LTV calculation and margin call management. Integration with property registries and financial market data providers. Collateral sharing and pooling across multiple credit facilities.

5.7 Loan Servicing

Post-disbursement loan management covering drawdowns, repayments, interest accrual, fee management, amendments, restructuring, and early repayment. Automated payment processing and reconciliation. Covenant monitoring with automated reminder and breach workflow. Multi-currency loan management with FX revaluation. Syndicated loan participation management.

5.8 Collection & Provisioning

End-to-end collection workflow from first payment default through recovery and write-off. Automated delinquency staging and escalation rules. Multi-channel customer communication (SMS, email, letter, outbound call). Legal proceedings workflow and external collection agency management. IFRS 9 provisioning engine with ECL calculation (Stage 1, 2, 3). Forbearance and restructuring tracking.

5.9 ACP Studio

No-code/low-code configuration environment enabling business teams to customize credit policies, product definitions, workflow rules, approval matrices, scoring parameters, and reporting templates without IT intervention. Version control and change management for all configuration changes. Simulation environment to test configuration changes before production deployment. Role-based access control for configuration management.

5.10 ACP Early Warning System (EWS)

AI-powered portfolio monitoring system for proactive credit risk detection. Real-time monitoring of 200+ quantitative and qualitative risk indicators. Automated alert generation and escalation to relationship managers and risk officers. Watch list management and periodic review workflow. Integration with external data sources (financial news, social media, market data). Regulatory reporting for BCBS 239 compliance.

5.11 ACP ESG Solution

Environmental, Social, and Governance scoring and monitoring integrated into the credit process. Carbon footprint assessment for corporate borrowers. Green finance classification and eligible green loan tracking. ESG covenant monitoring. Regulatory reporting for EU Taxonomy and SFDR compliance.

5.12 ACP Omnichannel

Unified omnichannel experience for borrowers and relationship managers across web portal, mobile application, branch interface, and API-based partner channels. Real-time application status visibility. Digital document submission and e-signature. Personalized product recommendations powered by AI.

5.13 ACP BI & Reporting

Comprehensive business intelligence and reporting platform with pre-built dashboards for executive management, risk officers, and business line managers. Ad-hoc report builder with drag-and-drop interface. Automated regulatory report generation (COREP, FINREP, local regulatory formats). Data export to Excel, PDF, and data warehouse formats. Real-time portfolio KPI monitoring.

ARTICLE 6 — CONTRACT DURATION AND PROGRAM TIMELINE

6.1 Master Agreement Duration: Ten (10) years from the Effective Date, unless terminated earlier in accordance with Article 31. The Agreement shall automatically renew for successive 2-year terms unless either party provides 12 months written notice of non-renewal.

6.2 Implementation Period: Thirty (30) months from October 1, 2024 to March 31, 2027, structured in four phases as detailed below.

Phase	Period	Key Deliverables	Budget
Phase 0 Mobilization	Oct–Nov 2024 (2 months)	Project setup, team onboarding, infrastructure validation, kickoff workshop, detailed planning	EUR 150,000
Phase 1 Foundation	Dec 2024–Jun 2025 (7 months)	KYC & Onboarding go-live ACP Studio go-live Data migration strategy Core integrations (CBS, CRM)	EUR 600,000
Phase 2 Core Credit	Jul 2025–Jun 2026 (12 months)	Origination go-live (all segments) Scoring & Decisioning go-live Underwriting & Approval go-live Collateral Management go-live Limit Management go-live	EUR 950,000
Phase 3 Advanced	Jul 2026–Mar 2027 (9 months)	Loan Servicing go-live Collection & Provisioning go-live BI & Reporting go-live EWS go-live ESG Solution go-live Omnichannel go-live AI model optimization	EUR 700,000

Phase 4 Embedding	Apr–Sep 2027 (6 months)	Hypercare support Organizational embedding User adoption optimization Final acceptance	Included in support
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ARTICLE 7 — SOFTWARE LICENSE TERMS

7.1 License Grant: Axe Finance hereby grants to MegaBank Group a perpetual, non-exclusive, non-transferable, worldwide license to use the ACP software platform for MegaBank Group's own internal banking operations. The license covers all modules listed in Article 5, all current and future affiliated entities of MegaBank Group, and all geographies in which MegaBank Group operates.

7.2 License Scope: The license covers: (i) installation and use of the software on Client-owned or Client-managed infrastructure; (ii) access by an unlimited number of internal users (employees, contractors, and agents); (iii) access by external users (borrowers, guarantors) through the ACP Omnichannel module; (iv) all Maintenance Releases delivered during the support term; (v) all documentation and training materials.

7.3 Deployment Options: The Client may deploy ACP in any of the following modes: (i) On-premise at Client data centers; (ii) Private cloud on Azure, AWS, or GCP; (iii) Hybrid deployment combining on-premise and cloud components. Changes to deployment mode require 90 days notice and may be subject to additional fees.

7.4 License Restrictions: The Client shall not: (i) sublicense, sell, or transfer the software to third parties; (ii) use the software to provide services to third-party financial institutions without prior written consent of Axe Finance; (iii) reverse engineer, decompile, or disassemble the software; (iv) remove or alter any proprietary notices or labels.

7.5 Source Code Escrow: Within 30 days of the Effective Date, Axe Finance shall deposit the ACP source code with an independent escrow agent (Iron Mountain or equivalent). The Client may access the source code only upon: (i) Axe Finance's insolvency; (ii) cessation of ACP support; or (iii) material breach of support obligations unremedied for 90 days.

ARTICLE 8 — IMPLEMENTATION METHODOLOGY

8.1 Axe Finance Implementation Framework: Axe Finance shall implement ACP using its proprietary Agile Implementation Framework (AIF), which has been refined over 20 years and 60+ successful implementations at global tier-1 financial institutions. The framework combines iterative Agile sprints (2-week cycles) with structured governance checkpoints at each Phase Gate.

8.2 Sprint Structure: Each sprint delivers tangible, tested functionality. Sprint planning occurs on Day 1; daily standups track progress; sprint demos on Day 10 involve business stakeholders; retrospectives drive continuous improvement. A sprint burndown report is shared with the Client PM after each sprint.

8.3 Phase Gate Process: Before proceeding from one phase to the next, a formal Phase Gate Review is conducted comprising: functional completeness assessment, UAT sign-off by Client business owners, performance benchmark validation, security assessment sign-off, data migration validation (where applicable), and training completion confirmation. Phase Gate approval requires written sign-off from the Client Program Sponsor and Axe Finance Delivery Lead.

8.4 Tooling and Collaboration: Axe Finance shall provide access to its project management portal (Jira/Confluence equivalent) giving the Client real-time visibility into all tasks, issues, risks, and decisions. A weekly status report in agreed format shall be delivered every Monday. A monthly executive dashboard shall be presented at Steering Committee meetings.

ARTICLE 9 — PROJECT GOVERNANCE AND STEERING

9.1 Governance Structure: The program shall operate under a four-tier governance model:

Level	Body	Frequency	Authority
1 — Operational	Delivery Teams	Daily	Day-to-day decisions
2 — Management	Project Management Office (PMO)	Weekly	Issues up to EUR 10,000
3 — Executive	Steering Committee	Monthly	Changes up to EUR 200,000
4 — Strategic	CEO/CFO Executive Review	Quarterly	All strategic decisions

9.2 Risk Management: A joint Risk Register shall be maintained and updated weekly by the PMO. Risks rated High or Critical shall be escalated to the Steering Committee within 24 hours of identification. Each risk shall have a designated owner, probability/impact assessment, and documented mitigation plan.

9.3 Issue Management: All issues shall be logged in the project management portal with priority classification (P1 Critical / P2 High / P3 Medium / P4 Low). P1 issues require resolution within 24 hours and immediate Steering Committee notification. P2 issues require resolution within 3 Business Days.

ARTICLE 10 — FINANCIAL TERMS AND PAYMENT SCHEDULE

10.1 Total Contract Value: EUR 4,750,000 excluding VAT

Component	Amount EUR (excl. VAT)	Payment Trigger	Invoice Date
ACP Perpetual License — Full Module Suite	1,200,000	Contract signature	Oct 1, 2024
Phase 0 — Mobilization	150,000	Kickoff completion	Nov 30, 2024
Phase 1 — Foundation delivery	600,000	Phase 1 Gate sign-off	Jun 30, 2025
Phase 2 — Core Credit delivery	950,000	Phase 2 Gate sign-off	Jun 30, 2026
Phase 3 — Advanced delivery	700,000	Phase 3 Gate sign-off	Mar 31, 2027
Training Program (500 users, 3 cohorts)	120,000	Training completion	Sep 30, 2026
Data Migration Services	80,000	Migration acceptance	Jun 30, 2025
Year 1 Support & Maintenance (Oct 2027)	150,000	Go-live date	Oct 1, 2027
Year 2–7 Support & Maintenance (annual)	140,000/year	Annual anniversary	Oct 1 each year
ACP AI Premium Module	200,000	Module go-live	Mar 31, 2026
Contingency Reserve (5%)	~200,000	Steering Committee approval	As incurred

10.2 Payment Conditions: All invoices are payable within 45 days of receipt. Late payment interest is charged at the ECB base rate plus 8 percentage points per annum. Disputed invoices must be raised in writing within 10 Business Days of receipt with full supporting documentation.

10.3 Annual Support Fee Indexation: Annual support and maintenance fees are subject to annual indexation based on the French INSEE index (SYNTEC index) with a minimum of 2% and maximum of 5% per year.

10.4 Currency and Taxes: All amounts are in Euros excluding VAT. Each party is responsible for its own taxes. Withholding taxes, if applicable, shall be grossed up so that Axe Finance receives the full net amount.

10.5 Expenses: Travel and accommodation expenses for on-site activities are invoiced at cost based on Axe Finance's expense policy (economy class flights, 4-star hotels, per diems as per EU Commission rates). Expenses exceeding EUR 5,000 per month require prior written approval.

ARTICLE 11 — AI-POWERED LENDING CAPABILITIES

11.1 AI Architecture: ACP's AI capabilities are built on a modular AI engine supporting multiple model types within a unified MLOps framework. The platform supports model development, validation, deployment, monitoring, and governance for all AI/ML models used in the credit decision process.

11.2 Scoring Models: Axe Finance shall develop and calibrate credit scoring models specifically for MegaBank Group using the Client's historical loan data. Model types include: application scorecard (logistic regression), behavioral scorecard, PD/LGD/EAD models for regulatory capital (Basel III), IFRS 9 ECL models (Stages 1/2/3), and early warning indicator models. All models shall be independently validated by the Client's model risk management team before production deployment.

11.3 Explainable AI (XAI): Every AI-driven credit decision produces a human-readable explanation identifying the top positive and negative factors influencing the decision. XAI explanations comply with EU AI Act requirements for high-risk AI systems and enable relationship managers to explain decisions to borrowers.

11.4 Model Governance: All models are subject to: initial validation before deployment; quarterly performance monitoring; annual full recalibration; and immediate review if performance degrades below agreed thresholds (Gini coefficient below 0.35 triggers review). A model inventory, validation reports, and monitoring dashboards are maintained in ACP Studio.

11.5 Ethical AI: Axe Finance warrants that all AI models are designed and validated to be free from prohibited discrimination based on gender, ethnicity, religion, age, or other protected characteristics. Bias testing reports are delivered with each model deployment.

ARTICLE 12 — SYSTEM INTEGRATION REQUIREMENTS

ACP shall be integrated with the following MegaBank Group systems and external providers:

System	Integration Type	Data Flow	Timeline
Core Banking System (Temenos T24)	Real-time REST API + batch	Customer data, account data, loan disbursement, repayment	Phase 1

CRM (Salesforce)	Bidirectional REST API	Customer profiles, opportunity management, activity logging	Phase 1
Document Management System (SharePoint)	REST API	Document storage and retrieval for all credit files	Phase 1
Credit Bureau (Experian)	Real-time REST API	Credit history, payment behavior, public records	Phase 2
Central Bank Reporting	Batch file + API	COREP, FINREP, local regulatory reporting data feeds	Phase 2
Enterprise Data Warehouse (Teradata)	Batch file	Full credit portfolio data for analytics	Phase 3
Market Data (Bloomberg)	Real-time API	Collateral valuation, FX rates, interest rate curves	Phase 2
e-Signature (DocuSign)	REST API	Digital contract execution for all loan agreements	Phase 1
Identity Verification (Onfido)	REST API	Biometric ID verification for KYC process	Phase 1
AML Screening (ComplyAdvantage)	Real-time API	PEP, sanctions, adverse media screening	Phase 1
Payment Gateway (SWIFT)	ISO 20022 API	Loan disbursement and collection transactions	Phase 2
Property Registry	API/batch	Real estate collateral valuation and ownership	Phase 2

ARTICLE 13 — INFRASTRUCTURE AND TECHNICAL PREREQUISITES

13.1 Production Environment: Minimum 3-tier architecture with dedicated application servers, database servers, and web servers. High availability configuration with active-active clustering. Geographic redundancy across 2 data centers minimum. RTO of 4 hours, RPO of 1 hour.

13.2 Minimum Server Specifications (Production): Application servers: 32 vCPU, 128GB RAM, 2TB SSD storage. Database servers: 64 vCPU, 256GB RAM, 10TB SSD with RAID 10. Load balancers: redundant pair. Network bandwidth: 10 Gbps internal, 1 Gbps external.

13.3 Database: Oracle Database 19c Enterprise Edition or PostgreSQL 15+. Oracle RAC for production high availability. Separate environments for production, UAT, pre-production, development, and disaster recovery.

13.4 Client Responsibilities: The Client is solely responsible for providing, maintaining, and funding the infrastructure described in this Article and detailed in Annex D. Infrastructure delays directly caused by the Client that impact project timeline shall result in a corresponding extension of delivery dates without penalty.

ARTICLE 14 — DATA MIGRATION

14.1 Scope: Axe Finance shall migrate historical credit data from the Client's legacy systems to ACP covering: active loan portfolio (estimated 250,000 records), customer credit files, collateral records,

payment history (5 years), and delinquency/collection history (7 years).

14.2 Migration Approach: Data migration shall follow a structured 5-step process: (1) Data extraction and profiling; (2) Data quality assessment and cleansing; (3) Data transformation and mapping to ACP data model; (4) Parallel run validation; (5) Cutover and reconciliation.

14.3 Data Quality: Axe Finance warrants a data migration accuracy rate of 99.9% measured against agreed reconciliation criteria. Any data quality issues in the source systems are the Client's responsibility to remediate prior to migration. Axe Finance will provide a detailed data quality report within 60 days of project kickoff.

ARTICLE 15 — TRAINING AND CHANGE MANAGEMENT

15.1 Training Program: Axe Finance shall deliver a comprehensive training program covering all user roles. Training is structured in 3 cohorts aligned with phase go-lives and covers 500 users across relationship managers, credit analysts, risk officers, operations staff, and IT administrators.

Audience	Format	Duration	Users
Credit Analysts & RMs	Classroom + hands-on labs	3 days	200
Credit Risk Officers	Classroom + workshop	2 days	80
Operations & Servicing	Classroom + simulation	2 days	120
IT Administrators	Technical workshop	3 days	30
Executives & Managers	Executive overview	0.5 day	40
ACP Studio (Business Config)	Advanced workshop	2 days	30

15.2 Change Management: Axe Finance shall provide a dedicated Change Management Lead to support organizational adoption. Activities include stakeholder impact assessment, communication plan development, resistance management, champion network establishment, and post-go-live adoption monitoring. Target adoption KPI: 85% of users actively using the system within 60 days of each go-live.

ARTICLE 16 — OBLIGATIONS OF AXEFINANCE

1. Deliver all modules and phases in accordance with the agreed timeline and scope;
2. Maintain a dedicated senior implementation team throughout the engagement without personnel changes exceeding 20% per year without Client approval;
3. Assign a Program Director with minimum 10 years of ACP implementation experience;
4. Provide weekly delivery status reports and monthly executive dashboards;
5. Maintain a risk register updated weekly with mitigation actions;
6. Conduct formal Phase Gate Reviews with written documentation before each phase transition;
7. Ensure all Deliverables meet the functional and performance specifications in Annex A;
8. Complete UAT support within agreed timelines and resolve defects per the SLA in Annex C;
9. Deliver all training programs per Article 15;
10. Ensure ACP achieves all go-live performance benchmarks: response time under 3 seconds for 95% of transactions under normal load;
11. Provide 24/7 support for critical incidents post go-live per the SLA matrix in Annex C;

12. Deliver all Maintenance Releases within 30 days of release availability;
13. Deliver regulatory updates within 30 days of regulation publication or enforcement date;
14. Maintain ISO 27001 certification throughout the Agreement term;
15. Conduct annual security penetration testing and share results with the Client;
16. Provide knowledge transfer ensuring Client IT team self-sufficiency within 12 months of final go-live;
17. Maintain adequate professional indemnity insurance of minimum EUR 10,000,000;
18. Comply with all applicable laws and regulations in France and in Client's operating jurisdictions;
19. Not use Client data for any purpose other than performance of this Agreement;
20. Notify the Client within 2 hours of any security incident affecting Client data;

ARTICLE 17 — OBLIGATIONS OF THE CLIENT (DAF — MegaBank Group)

1. Designate a full-time Program Sponsor (CIO or equivalent) with authority to make binding decisions;
2. Provide a dedicated Business Owner and IT Lead for each module implementation;
3. Make key decision-makers available within 48 hours for critical decisions;
4. Complete UAT sign-off within 10 Business Days of Deliverable submission or provide written defect list;
5. Ensure infrastructure readiness per Article 13 and Annex D at least 30 days before each phase start;
6. Provide timely access to all legacy systems, data extracts, APIs, and personnel required by Axe Finance;
7. Make all agreed payments strictly per the schedule in Article 10;
8. Ensure 80% availability of key business users for workshops, reviews, and UAT sessions;
9. Provide a dedicated project workspace at Client headquarters for Axe Finance on-site team;
10. Not poach or solicit Axe Finance employees during the Agreement term and 12 months post-completion;
11. Ensure that all regulatory approvals required for new system deployment are obtained on schedule;
12. Provide prompt written approval or rejection of Change Orders within 5 Business Days of submission;
13. Maintain data quality standards in source systems sufficient for migration activities;
14. Ensure executive attendance at quarterly Strategic Reviews;
15. Notify Axe Finance of any material changes to business requirements, regulatory environment, or IT strategy within 10 Business Days of such changes;
16. Maintain adequate cybersecurity controls in the production environment per Article 21;
17. Ensure end-user training attendance rates of minimum 90% per cohort;
18. Provide written acceptance or rejection of all Deliverables within agreed timelines;

ARTICLE 18 — SUPPORT AND MAINTENANCE SERVICES

18.1 Support Tiers: Axe Finance provides three tiers of support:

Tier 1 (Business Hours Support): Available Monday to Friday 8:00–18:00 CET for all priority levels. Single point of contact via dedicated support portal, email, and phone.

Tier 2 (Extended Support): Available Monday to Sunday 7:00–22:00 CET for P1 and P2 incidents. Escalation from Tier 1 for complex technical issues.

Tier 3 (24/7 Critical Support): Available around the clock for P1 Critical incidents (system down or severe business impact). Direct access to senior engineers and architects.

18.2 Maintenance Scope: Annual maintenance fees cover: all bug fixes and corrective patches; security patches with emergency deployment within 24 hours for critical vulnerabilities; Maintenance Releases (minor versions) with backward compatibility; regulatory updates for COREP, FINREP, Basel III/IV, IFRS 9, DORA, and local regulations; access to the Axe Finance customer portal, knowledge base, and community forum; annual technical health check of the production environment.

18.3 Major Version Upgrades: Major version upgrades (introducing architectural changes or significant new functionality) are offered at preferential pricing for existing clients representing a minimum 40% discount from standard license fees.

ARTICLE 19 — SERVICE LEVEL AGREEMENTS (SLA)

Priority	Definition	Response Time	Workaround Target	Resolution Target	Escalation
P1 Critical	System down or major functionality unavailable for >25% users	15 min	2 hours	4 hours	Immediate to CTO + CIO
P2 High	Major function impaired, significant business impact, no workaround	1 hour	4 hours	1 Business Day	30 min to PM + IT Lead
P3 Medium	Function impaired with acceptable workaround available	4 hours	1 Business Day	5 Business Days	48h if not resolved
P4 Low	Minor issue, cosmetic defect, or enhancement request	1 Business Day	N/A	20 Business Days	Monthly review

19.2 Availability SLA: ACP production environment shall achieve 99.9% availability measured on a monthly basis excluding planned maintenance windows. Planned maintenance shall be scheduled during low-traffic windows (Saturday 02:00–06:00 CET) with minimum 5 Business Days prior notice. SLA credits apply for availability below 99.9% as follows: 99.0–99.9% = 5% monthly fee credit; 98.0–99.0% = 10% credit; below 98.0% = 20% credit.

ARTICLE 20 — QUALITY ASSURANCE AND TESTING

20.1 Testing Strategy: A comprehensive testing strategy shall be agreed within 30 days of project kickoff, covering unit testing, integration testing, system testing, performance testing, security testing, regression testing, and user acceptance testing.

20.2 Performance Benchmarks: ACP must meet the following performance criteria at go-live: average response time below 2 seconds for standard transactions; 95th percentile response time below 5 seconds under peak load; system capable of handling 500 concurrent users without degradation; batch processing of 100,000 transactions within 4-hour window.

20.3 Defect Management: All defects identified during testing are classified as Critical, Major, Minor, or Cosmetic. Go-live is conditional on zero open Critical defects and fewer than 5 open Major defects with agreed workarounds.

ARTICLE 21 — SECURITY AND REGULATORY COMPLIANCE

21.1 Security Standards: ACP is designed and maintained in compliance with ISO 27001, OWASP Top 10, NIST Cybersecurity Framework, and banking-specific security standards including SWIFT Customer Security Programme (CSP) requirements.

21.2 Penetration Testing: Axe Finance conducts annual penetration testing by a certified third-party security firm. Results are shared with the Client. Critical and high vulnerabilities are remediated within 30 days of identification. The Client may conduct its own penetration testing upon 30 days prior notice during agreed testing windows.

21.3 Regulatory Compliance: ACP supports compliance with Basel III/IV (credit risk, operational risk, market risk), IFRS 9 (expected credit loss), DORA (Digital Operational Resilience Act), GDPR, PSD2, AML/KYC regulations (AMLD6), and local banking regulations in all countries where MegaBank Group operates.

ARTICLE 22 — DATA PROTECTION AND GDPR

22.1 Data Controller/Processor: MegaBank Group acts as Data Controller. Axe Finance acts as Data Processor. The Data Processing Agreement (DPA) in Annex F governs all processing of Personal Data under this Agreement.

22.2 Data Residency: All Client data including Personal Data shall remain within the European Economic Area at all times. Sub-processors outside the EEA are prohibited without prior written consent of the Client and execution of appropriate transfer mechanisms.

22.3 Data Subject Rights: Axe Finance shall provide technical means enabling MegaBank Group to respond to data subject rights requests (access, rectification, erasure, portability) within 72 hours of request receipt.

22.4 Incident Response: In case of Personal Data breach, Axe Finance must: notify MegaBank Group within 2 hours of detection; provide full incident analysis within 24 hours; support GDPR notification to supervisory authority within 72 hours if required; and remediate the breach within 48 hours.

22.5 Data Deletion: Upon termination of the Agreement, Axe Finance shall securely delete or return all Client data within 30 days and provide written certification of deletion.

ARTICLE 23 — INTELLECTUAL PROPERTY RIGHTS

23.1 Axe Finance IP: The ACP platform, all underlying technology, source code, algorithms, AI models (pre-existing), methodologies, frameworks, and tools developed by Axe Finance remain the exclusive intellectual property of Axe Finance. Nothing in this Agreement transfers ownership of Axe Finance IP to the Client.

23.2 Client IP: All custom developments, configurations, business rules, scoring models trained exclusively on Client data, integration specifications, reports, and documentation created specifically for MegaBank Group become the property of MegaBank Group upon payment of the corresponding

invoices.

23.3 Joint Developments: Any innovation jointly developed during the engagement shall be jointly owned with each party having the right to exploit such innovations independently without accounting to the other party.

23.4 IP Indemnification: Axe Finance shall indemnify and hold harmless MegaBank Group against any third-party claim alleging that the ACP platform infringes any intellectual property rights, provided the Client promptly notifies Axe Finance of such claim and grants Axe Finance control of the defense.

ARTICLE 24 — CONFIDENTIALITY

Both parties undertake to maintain strict confidentiality of all Confidential Information exchanged under this Agreement for a period of 7 years following contract termination. Confidential Information includes but is not limited to: technology architecture, source code, business processes, financial data, customer data, strategic plans, pricing, and negotiation positions.

Permitted disclosures are limited to: (i) regulatory requirements and court orders; (ii) employees and advisors bound by equivalent confidentiality obligations; (iii) disclosures expressly authorized in writing by the disclosing party.

Axe Finance may reference MegaBank Group as a client reference with prior written approval from MegaBank Group's communication department. Press releases, case studies, and conference presentations require separate written consent.

ARTICLE 25 — WARRANTIES AND REPRESENTATIONS

Axe Finance warrants that:

1. ACP will perform materially in accordance with the functional specifications in Annex A;
2. ACP will not infringe any third-party intellectual property rights known to Axe Finance;
3. All Deliverables will be free from material defects for a period of 12 months post-acceptance;
4. Axe Finance personnel assigned to this engagement hold the qualifications and certifications stated in their CVs submitted during the RFP;
5. Axe Finance is duly incorporated, in good standing, and has the authority to enter into this Agreement;
6. Axe Finance maintains professional indemnity insurance of minimum EUR 10,000,000;
7. ACP does not contain any malicious code, backdoors, or unauthorized surveillance mechanisms;
8. All AI models delivered comply with applicable EU AI Act requirements for high-risk AI systems.

ARTICLE 26 — LIABILITY AND INDEMNIFICATION

26.1 Liability Cap: Axe Finance's aggregate liability for any and all claims arising under or in connection with this Agreement shall not exceed the total fees paid by the Client in the 12 months preceding the claim giving rise to liability.

26.2 Exclusions: Neither party shall be liable for indirect, consequential, special, incidental, or punitive damages, or for loss of profit, loss of revenue, loss of data, or loss of business opportunity, even if advised of the possibility of such damages.

26.3 Exceptions: The above limitations do not apply to: (i) death or personal injury caused by negligence; (ii) fraud or willful misconduct; (iii) breaches of Article 24 (Confidentiality); (iv) breaches of Article 22 (Data Protection); (v) IP indemnification under Article 23.4.

ARTICLE 27 — PENALTIES AND LIQUIDATED DAMAGES

27.1 Delivery Delay Penalties: If Axe Finance fails to achieve a Phase Gate Go-Live by the agreed date (as adjusted for agreed Change Orders or Client-caused delays), liquidated damages shall apply at 0.5% of the relevant phase fee per week of delay, capped at 10% of the relevant phase fee.

27.2 SLA Breach Credits: Monthly SLA credits apply as specified in Article 19.2. Cumulative SLA credits exceeding 20% of annual support fees in any 12-month period entitle the Client to request an independent technical audit at Axe Finance's expense.

27.3 Exclusions: No penalties apply where delays are caused by: Client-caused delays (including late UAT sign-off, infrastructure readiness, or resource unavailability); Force Majeure Events; agreed Change Orders modifying timelines; or third-party systems failures outside Axe Finance's control.

ARTICLE 28 — CHANGE MANAGEMENT PROCESS

Any modification to the agreed scope, timeline, or budget requires a formal Change Order following this process: (1) Change request submitted in writing by either party; (2) Impact assessment by Axe Finance within 5 Business Days; (3) Commercial proposal if applicable; (4) Client approval within 5 Business Days; (5) Change Order executed by both parties before implementation.

Verbal or informal change approvals have no contractual effect. Changes are classified as: In-Scope Clarification (no additional cost), Minor Change (up to EUR 50,000), Major Change (EUR 50,000–200,000), and Significant Change (above EUR 200,000 requiring CEO approval).

ARTICLE 29 — SUBCONTRACTING

Axe Finance may subcontract portions of the Implementation Services to pre-approved partners listed in Annex E. Any additional subcontractors require 30 days prior written notice and Client approval. Axe Finance remains fully responsible for all subcontractor performance. Subcontractors are bound by equivalent confidentiality and data protection obligations.

ARTICLE 30 — FORCE MAJEURE

Neither party shall be liable for delays or failures caused by Force Majeure Events including natural disasters, wars, pandemics, government actions, major cyberattacks of national scale, or widespread telecommunications failures. The affected party must notify the other within 48 hours and propose a recovery plan within 10 Business Days. If a Force Majeure Event persists for more than 90 consecutive days, either party may terminate the affected workstream without penalty.

ARTICLE 31 — TERMINATION

31.1 Termination for Convenience: Either party may terminate this Agreement with 12 months written notice at any contract year-end after the initial 3-year period.

31.2 Termination for Cause: Either party may terminate immediately upon written notice if: (i) the other party becomes insolvent or enters administration; (ii) material breach unremedied within 30 days of written notice; (iii) sustained SLA underperformance for 6 consecutive months; (iv) material misrepresentation in entering this Agreement.

31.3 Effects of Termination: Upon termination, the software license remains valid for fully paid modules. Outstanding fees for completed work are immediately due. All Confidential Information must be returned or destroyed. Support obligations for paid support periods continue until expiry.

ARTICLE 32 — TRANSITION AND EXIT

Upon termination or expiry, Axe Finance shall provide transition assistance for up to 6 months to enable the Client to migrate to an alternative solution or assume full autonomy. Transition services include: data export in agreed formats; documentation handover; knowledge transfer sessions; and reasonable technical support during migration. Transition services are charged at Axe Finance's then-current professional services rates.

ARTICLE 33 — DISPUTE RESOLUTION

The parties commit to resolving disputes through: (1) Good-faith bilateral negotiation between Program Directors within 15 Business Days; (2) Escalation to CEO/CFO level for a further 15 Business Days if unresolved; (3) Formal mediation under ICC Mediation Rules for a further 30 days if unresolved; (4) Final and binding ICC Arbitration in Paris, conducted in French and English, with a panel of 3 arbitrators. The arbitration award is enforceable in all jurisdictions.

ARTICLE 34 — GOVERNING LAW

This Agreement is governed by and construed in accordance with the laws of France excluding its conflict of laws rules. The United Nations Convention on Contracts for the International Sale of Goods does not apply.

ARTICLE 35 — GENERAL PROVISIONS

35.1 Entire Agreement: This Agreement and its Annexes constitute the entire agreement between the parties regarding the subject matter and supersede all prior negotiations, representations, proposals, and agreements.

35.2 Severability: If any provision is found unenforceable, the remaining provisions continue in full force. The unenforceable provision shall be modified to the minimum extent necessary to make it enforceable.

35.3 Waiver: Failure to enforce any provision does not constitute a waiver of the right to enforce it subsequently.

35.4 Notices: All formal notices must be in writing, delivered by registered mail or email with read receipt to the addresses in Article 2.

35.5 Assignment: Neither party may assign this Agreement without prior written consent of the other, except to an Affiliate or in connection with a merger or acquisition.

35.6 Counterparts: This Agreement may be executed in counterparts, each of which constitutes an original, and together constitute one and the same agreement.

35.7 Language: This Agreement is executed in French and English. In case of conflict, the French version prevails.

ANNEXES

ANNEX A — Module Functional Specifications

Detailed functional specifications for each of the 13 ACP modules listed in Article 5, including user stories, acceptance criteria, configuration parameters, and integration requirements. Document reference: AXF-ACP-SPEC-2024-001 (250 pages, attached separately).

ANNEX B — Detailed Payment Schedule

Month-by-month payment schedule aligned with phase milestones, including invoice templates, wire transfer details, VAT treatment, and escalation clauses. Total contract value: EUR 4,750,000 excluding VAT over 10 years.

ANNEX C — SLA Matrix

Complete SLA matrix including incident classification criteria, response and resolution targets, availability measurement methodology, SLA credit calculation formulas, reporting formats, and escalation procedures.

ANNEX D — Infrastructure Requirements

Detailed technical specifications for production, UAT, pre-production, development, and disaster recovery environments, including server sizing, network architecture, storage requirements, security configurations, and certificate management.

ANNEX E — Integration Specifications

Technical integration specifications for all 12 system integrations listed in Article 12, including API contracts, data mapping, error handling, performance requirements, and testing protocols.

ANNEX F — Data Processing Agreement (DPA)

Comprehensive DPA governing all processing of Personal Data, including data categories, processing purposes, security measures, sub-processor list, data subject rights procedures, and cross-border transfer mechanisms compliant with GDPR Chapter V.

ANNEX G — Risk Register

Initial project risk register identifying 45 risks across technical, organizational, regulatory, and external dimensions, with probability/impact assessments, risk owners, and mitigation plans agreed at contract signature.

ANNEX H — KPI Framework

Comprehensive KPI framework covering implementation performance (on-time delivery, defect density, user adoption), platform performance (availability, response time, throughput), business impact (TAT reduction, approval rate, NPA ratio), and client satisfaction metrics.

SIGNATURE PAGE

IN WITNESS WHEREOF, the parties have executed this Master Agreement as of the Effective Date first written above, each party duly authorized to do so.

FOR AXE FINANCE SAS

Mr. Mehdi Tazi
Chief Executive Officer
Date: _____

Ms. Nadia Khelil
Chief Delivery Officer
Date: _____

FOR MEGABANK GROUP SA

Ms. Amina Bencherif
Chief Financial Officer (DAF)
Date: _____

Mr. Thomas Leclerc
Chief Information Officer
Date: _____

This document contains 35 articles, 8 annexes, and constitutes the complete legal agreement between Axe Finance SAS and MegaBank Group SA for the implementation and licensing of the Axe Credit Portal. Any modification requires written amendment signed by authorized representatives of both parties. | AXF-ACP-MASTER-2024-0088 |
Version 3.2 Final